

Analyst briefing: duration of status rule

Docket ICEB-2025-0001 (DHS/ICE) | F, J and I nonimmigrants | September 25, 2026

Status: proposed Aug 28, 2025 (FR 2025-16554); final rule published Jul 17, 2026 (FR 2026-14439), effective Sep 15, 2026; **postponed by the court on Sep 14, 2026** (United States District Court for the District of Massachusetts, No. 1:26-cv-13799-FDS). Duration of status continues while the case proceeds.

Key points

- **Policy:** 6 of 23 policy areas were modified from the proposed to the final rule and 4 appear new (pending review).
- **Comments:** 52% of 9,999 analyzed comments are negative. The largest concern is "Fixed visa limits and loss of duration of status" (72% of comments).
- **News:** sampled articles average 82/100 on grounding; 5 of 93 featured claims are contradicted by the rule or court record.
- **Video:** 67 of 111 claims were supported when published, 3 contradicted; 9 may be outdated after the court ruling.

What changed: proposed (V1) vs final (V2)

Unchanged	13	
Modified	6	
Added	4	

Key modifications: Admission requirements and EOS procedures for F, J, and I Nonimmigrants; Prohibition on graduate-level F-1 students changing programs or transferring without exception.

4 of 23 areas (the new additions) need analyst review.

Public comments

9,999 text comments analyzed of 21,923 on the docket.

Negative	52%	
Neutral	44%	
Positive	4%	

Top concerns: Fixed visa limits and loss of duration of status (72%); Restrictions on second or same-level degrees (11%); Economic and institutional impacts of international student restrictions (5%).

Minority views: Clean energy research and workforce impacts (58); Foreign journalist visa limits and press freedom (69).

News articles

20 articles, 18 publishers. Average grounding: 82/100.

Supported	44	
Partially supported	29	
Contradicted	5	
Unresolved	15	

Stakeholder viewpoints: 21 oppose, 15 support, 4 neutral.

News videos

10 videos, 111 claims, 255,047 known views.

Supported	67	
Partly supported	11	
Contradicted	3	
Not in rule text	19	

9 accurate claims may be outdated since the court ruling. Most-watched: Law Office of Louis S. Haskell (165,536 views), 10 of 15 claims supported, 1 contradicted.

Item for the analyst to decide	Confirm	Reject
Policy: confirm the 4 policy areas flagged as added against the proposed rule text before reporting them as new.	☐	☐
Accuracy: review the 5 contradicted news claims and 3 contradicted video claims against their citations; highest reach: Law Office of Louis S. Haskell (165,536 views): "The new rule takes effect on September 15, 2026, with no grace period for program changes or extensions." (91 FR 44976).	☐	☐
Currency: decide Still current / Outdated for the 9 video claims the AI flags as possibly outdated since the court ruling.	☐	☐
Court record: 15 news claims are unresolved and 19 video claims (mostly about the ruling) cannot be judged from the rule text; check them against the court order (No. 1:26-cv-13799-FDS).	☐	☐
Representativeness: attachment-only comments (often from organizations) are excluded from the text analysis; review them before citing comment shares as the public's view.	☐	☐

ANALYST DECISION: the final call rests with the reviewing analyst

☐ APPROVE☐ APPROVE WITH CHANGES☐ DO NOT APPROVE

Reviewer

Date

Notes

How this was made: PolicyLens on Microsoft Foundry (Azure OpenAI gpt-4.1-mini) for policy comparison and claim checks against the official Federal Register text; local models for comment sentiment and topics; Whisper for video transcripts. **Limits:** AI-assisted draft for analyst review, not legal advice; English-only samples, not representative of all coverage or opinion; attachment-only comments excluded; "added" and "outdated" results are review candidates. The Federal Register text is authoritative.